

1.

CASE #	CASE NAME	HEARING NAME
CVPS2407937	ROUSE VS WALMART, INC.	MOTION FOR LEAVE TO FILE A CROSS-COMPLAINT

Tentative Ruling: A cross-complaint is either compulsory or permissive. A cross-complaint is compulsory if the cause of action arises out of the same transaction, occurrence or series of transactions or occurrences as the cause of action in the complaint. (Code Civ. Proc. § 426.10(c).) Thus, the factual or legal issues are logically related. (*Currie v. Medical Specialties, Inc. v. Bowen* (1982) 136 Cal.App.3d 774, 777.) “[T]he relatedness standard requires not an absolute identity of factual backgrounds for the two claims, but only a logical relationship between them.” (*Align Technology, Inc. v. Tran* (2009) 179 Cal. App. 4th 949, 960.) The related cause of action must have existed at the time the defendant served its answer to the complaint. (Code Civ. Proc. § 426.30(a).)

If the cross-complaint is compulsory, the court shall grant leave as long as defendant is acting in good faith. (*Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99.; Code Civ. Pro. §426.50.) Factors such as oversight, inadvertence neglect or mistake are insufficient grounds to deny the motion unless there is a showing of bad faith. (*Silver*, supra, 217 Cal.App.3d at 99.) Bad faith must be shown by substantial evidence. (*Id.*)

If a cross-complaint is permissive, under Code of Civil Procedure section 428.50(c), a party shall obtain leave to file a cross-complaint and leave may be granted in the interest of justice at any time during the course of the action. At any time during the lawsuit, the court retains power to permit defendant to file a cross-complaint to avoid forfeiture of the defendant’s related claim. (*Silver*, supra, 217 Cal.App.3d at 98-99.) “Permission to file a permissive cross-complaint is solely within the trial court’s discretion.” (*Crocker Nat. Bank v. Emerald* (1990) 221 Cal.App.3d 852, 864.)

Contrary to Defendant’s assertion, the proposed cross-complaint is permissive. “There are no compulsory cross-complaints against parties other than plaintiff.” (Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* §6:524 (Rutter Group 2026).) Defendant seeks to sue a third party, rendering the proposed cross-complaint permissive.

Defendant brings an equitable indemnity claim, which is transactionally related to Plaintiff’s claims. “[A] cross-complaint for comparative equitable indemnity is almost by definition transactionally related to the claims asserted by the plaintiff, because a claim for equitable indemnity depends on the allegation that the same harm for which plaintiff seeks to hold defendant liable is properly attributable, at least in part, to the acts of the cross-defendant. [Citation.] An indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff.” (*Time for Living, Inc. v. Guy Hatfield Homes/All American Development Co.* (1991) 230 Cal.App.3d 30, 39.) While the court acknowledges the issues with service of a foreign company, trial is not set. It is in the interests of justice to bring a cross-complaint against manufacturer Ninghai Yongo for the indemnity claim.

Motion for Leave to File Cross-Complaint GRANTED.

Defendant Applied Mobility Device LLC to file cross-complaint within 10 days.

Trial Setting Conference continued to 3.10.27.

OSC re Proof of Service of Cross-Defendant Ninghai Yongo set for 2.10.27.

OSC re TSC declaration is vacated.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501303	MERCIER VS INVESTMENT CONCEPTS, INC	MOTION TO BE RELIEVED AS COUNSEL FOR TAMAR MERCIER

Tentative Ruling:

Motion to be Relieved as Counsel: GRANTED.

Attorney is relieved as counsel of record for Plaintiff, effective upon the filing of the proof of service of the signed court upon the client.

Trial Setting Conference is continued 9.29.26. Case is returned back to active status.

Status hearing re representation for Plaintiff Tamar Mercier is set for 9.29.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL SPECIAL INTERROGATORIES FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT

Tentative Ruling: No tentative ruling. Hearing is continued to 8.31.26 to be heard after the Informal Discovery Conference calendared for 8.14.26.

An OSC re Related Case for CVPS 2605423 is set for 8.31.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL REQUEST FOR PRODUCTION OF DOCUMENTS FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT

Tentative Ruling: No tentative ruling. Hearing is continued to 8.31.26 to be heard after the Informal Discovery Conference calendared for 8.14.26.

An OSC re Related Case for CVPS 2605423 is set for 8.31.26.